



NON-DISCLOSURE AGREEMENT

This **Non-Disclosure Agreement** (this "**Agreement**") is made and entered into as of the date of signature below by and between:

Ilorin Innovation Hub (also known as Ilorin Tech Park Ltd), with its principal office at Ahmadu Bello Way, GRA, Ilorin, Kwara State, Nigeria (hereinafter referred to as the "**Company**"),
and

Employee Name: _____
Employee Address: _____

(hereinafter referred to as the "**Employee**").

1. Confidential Information

For the purposes of this Agreement, "**Confidential Information**" means any technical, business, or proprietary information disclosed by the Company to the Employee, whether in written, oral, electronic, or any other form, including but not limited to: technical data, business strategies, financial information, customer and vendor lists, processes, policies, software, designs, inventions, intellectual property, and trade secrets. Confidential Information includes, but is not limited to, information that:

- (i) is marked "confidential" or "proprietary" at the time of disclosure;
- (ii) is orally disclosed and identified as "confidential" or "proprietary" at the time of disclosure;
- (iii) under the circumstances, a reasonable person would understand to be confidential or proprietary; or
- (iv) is provided or made accessible in a manner that reasonably indicates its confidential nature.

The requirement to summarize oral disclosures within thirty (30) days is **waived**; oral disclosures shall be considered confidential as described above.

2. Employee's Obligations

The Employee agrees to:

- Maintain the confidentiality of all Confidential Information;
- Use the Confidential Information solely for the purposes of employment and for the benefit of the Company;
- Not disclose, publish, or communicate any Confidential Information to any third party without the prior written consent of the Company;
- Take all reasonable measures to protect the confidentiality of the Confidential Information, including securing physical and digital materials;
- Promptly notify the Company in writing of any unauthorized use or disclosure of the Confidential Information;
- Not copy, reproduce, or store Confidential Information in any form except as necessary for the performance of employment duties.

3. Exclusions

Confidential Information shall not include information that the Employee can prove:

- Was lawfully known to the Employee prior to disclosure by the Company;
- Becomes publicly available through no wrongful act or omission of the Employee;
- Is lawfully disclosed to the Employee by a third party without restriction;
- Is independently developed by the Employee without reference to the Company's Confidential Information.

The burden of proving any of the above exclusions shall rest solely with the Employee.

4. Return or Destruction of Materials

Upon termination of employment or at the request of the Company, the Employee shall:

- Return all tangible materials, documents, and property containing or embodying Confidential Information;
- Delete or permanently destroy all electronic copies or files containing Confidential Information from all devices and storage media;
- Certify in writing that all such returns and deletions have been completed.

5. Term

This Agreement shall remain in effect during the Employee's employment and for a period of **five (5) years** following termination of employment, regardless of the reason for termination.

Obligations with respect to trade secrets shall survive for so long as such information remains a trade secret under applicable law.

6. Remedies

The Employee acknowledges that any breach of this Agreement may cause irreparable harm to the Company. Accordingly, the Company shall be entitled to seek:

- Injunctive relief;
- Specific performance;
- Any other legal or equitable remedies available under applicable law.

The Employee agrees that **monetary damages alone may be insufficient to remedy such breaches.**

7. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of **Kwara State and the Federal Republic of Nigeria.**

8. Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof, and supersedes all prior agreements or understandings, whether written or oral.

No amendment or modification of this Agreement shall be valid unless made in writing and signed by both parties.



IN WITNESS WHEREOF, the parties have executed this Agreement as of the date set forth below:

For Ilorin Innovation Hub (also known as Ilorin Tech Park Ltd):

Authorized Representative Name

Title

Signature: _____

Date: _____

Employee:

Employee Name

Signature: _____

Date: _____